

25SMCV04163 25SMCV04163

County: los-angeles

Division: Civil Law and Motion

Department: O

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TENTATIVE RULING

September 1, 2026

25SMCV04163 (Doe v. City of Santa
Monica)

RELEVANT BACKGROUND

On August 13, 2025,
plaintiff Jane Doe (Plaintiff) filed her complaint against the City of Santa
Monica (the City).

On October 28, 2025,
Plaintiff filed her first amended complaint (FAC) against the City. Plaintiff
alleges that her former roommate assaulted her and that Santa Monica Police
Officers failed to either create an incident report or provide records pursuant
Family Code section 6228 and Penal Code section 13730. Her lawsuit against the
City of Santa Monica is based on her claims that the officers' failure to
follow the reporting mandates under these statutes caused her to lose housing
and other benefits available to victims of domestic violence. Plaintiff asserts
that alleged noncompliance with Family Code section 6228 and Penal Code section
13730 establishes a statutory basis for liability under Government Code section
820.

INSTANT MOTION

On December 18, 2025, the City filed the

instant demurrer to the FAC. Plaintiff filed an opposition, and the City filed a reply.

MEET AND CONFER

The Court finds that the City has satisfied the meet and confer requirement. (Brown Decl. ¶ 3.)

DISCUSSION

As a public entity, the City “is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person,” “[e]xcept as otherwise provided by statute.” (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 899, quoting Government Code § 815.) Government Code section 815 “abolishes all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the state or federal constitution....” (Ibid.) Statutory claims must be “pleaded with particularity” and “[e]very fact essential to the existence of statutory liability must be pleaded.” (Susman v. Los Angeles (1969) 269 Cal.App.2d 803, 809.) This includes the obligation to “specifically allege the applicable statute.” (Sullivan v. City of Sacramento (1987) 190 Cal.App.3d 1070, 1080.)

Here, the City’s demurrer to the FAC is based on the following grounds:

- 1) Plaintiff fails to state a cognizable claim because liability against public entities is exclusively authorized by statute and Plaintiff has not articulated an applicable statute that would allow liability against the City of Santa Monica or its employees. Section 820 does not apply because neither an employee nor private person can be held liable for a violation under Family Code section 6228 or Penal Code section 13730.
- 2) Plaintiff’s claim pursuant to Family Code section 6228 fails to state a claim because there is no private right of action under that statute.
- 3) Plaintiff’s claim pursuant to Penal Code section 13730 fails to state a claim because there is no private right of action under

that statute.

4) Plaintiff's claim pursuant to 42 U.S.C 1982 fails to state claim because her allegations include neither property conveyance nor discrimination claims. Additionally, even if Plaintiff meant to plead a 42 U.S.C 1983 claim, the claim also fails because she has not asserted facts that she deprived of a specific law under the Constitution of the United States of America or laws of the United States.

(Motion at p. 2.)

The

Court agrees with the City that the FAC fails to state a claim because neither Family Code section 6228 nor Penal Code section 13730 authorizes a private right of action. (See Fam. Code, § 6228; Pen. Code, § 13730.) Government Code section 820 permits vicarious liability against public employees to the same extent a private person could be held liable. (Gov. Code, § 820.) As no private right of action exists under either statute, section 820 is inapplicable.

Lastly, Plaintiff does not state a claim under the Bane Act or 42 U.S.C §1983 because Plaintiff cannot show a deliberate threat of violence or under section 52.1 or a policy/custom that encouraged or facilitated discriminatory conduct.

Further, the Court finds that leave to amend is not appropriate because Plaintiff has not satisfied her burden of demonstrating that the defects can be cured by amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Opp., generally.)

Accordingly, the City's demurrer to the FAC is SUSTAINED WITHOUT LEAVE TO AMEND.